Summa Theologica

In his Summa Theologica, Aquinas establishes the existence of four levels of law which had an underlying unity which is reason. What differentiates one form of law from the other is the level of reason involved. The highest and most comprehensive among them is eternal law which is reason that is operative in the universe as a whole. It is the natural and the ethical order which God had established. The next is divine law which is a special category of eternal law which is the revealed word of God in the Scripture.

The next level of law, Aquinas identifies as the natural law. The idea of natural law goes back to the stoics and refers to moral law that is discovered by reason alone. It assumes that man has the capacity to reason and arrive at certain ethical conclusion that would be binding on them whether it is specified in the law or not. For example, we do not need to have a criminal code to understand that murder is wrong and behave accordingly. The uniqueness of Aquinas' theory of natural law is that it establishes a link between the natural and the supernatural – between nature and spirit. This is so because, says Aquinas, that right and wrong are determined by God's eternal law and hence natural law is nothing else that the rational creature's participation in the eternal law. Human's moral reasoning is in short the extension of the spiritual principle that transcends nature. Finally, human law is the application of human reason to the precepts of natural law in specific earthly conditions.

On Kingship

The political theory of Aquinas closely parallels ***Aristotle***'s. His writings 'On Kingship' can be considered as the most methodical political work. Aquinas largely follows the pattern of arguments that were adopted by ***Aristotle*** in his 'Politics'. He argues that the State is natural because it is natural for man… to be a social and political animal, and to live in a group. Consequently he emphasizes that political activity in necessary and good. Aquinas further like ***Aristotle***, roots people's political nature in their capacity to reason and to speak. Subsequently he emphasizes that it is through reasoned action in the political sphere that humans achieve virtue and there for happiness and fulfilment. Like ***Aristotle***, he believes that the state is a moral community where the moral good of its members are considered as its objective. Thus, he argues that the state should be based on justice and the best should rule for the good of the public which should be under the constraints of law. Such an argument leads us directly to the problem of classifying constitutions and yet again Aquinas follows the principles of ***Aristotle*** by using both qualitative and quantitative methods. He classifies constitution by the number of those who rule and the quality of their rule.

Quotable Quote

Law is nothing other than a certain ordinance of reason for the common good, promulgated by the person who has the care of the community.

- Thomas Aquinas

Assessment

St. Thomas Aquinas who is regarded as one of the great figures of medieval thought founded a tradition which came to be known as Thomism. The basis of his political theory can be found in his commentary on ***Aristotle***'s Politics in

11th Std Political Science Eng Medium Vol-1 Page 171-205 Chapter 7.indd 112 07/12/2022 11:03:34